

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CLCL048443: WELLS FARGO BANK, N.A. vs RONALD L MERINO

07/09/2026 in Department 40

Motion for Sanctions and Request for Corrective Order Regarding Misrepresentations to Arbitrator

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Tentative Decision:

Defendant Ronald L. Merino filed a Motion for Sanctions and Request for Corrective Order regarding Misrepresentations to Arbitrator. Mr. Merino claims that plaintiff's counsel "represented to the arbitrator and/or opposing parties that the Court had denied Defendant's Motion to Compel Arbitration and Stay Proceedings" when in fact the Court granted that motion. Defendant states that this misrepresentation was materially misleading, prejudicial, and interfered with the orderly administration of justice. Mr. Merino seeks sanctions against plaintiff's counsel, an order requiring all appearances by plaintiff's counsel to be in person rather than remotely, and an order compelling plaintiff to produce various documents in the arbitration.

Mr. Merino is correct that, at a hearing held on April 15, 2026, this Court granted his motion to compel arbitration and stay proceedings in the superior court pending completion of arbitration.

Sending a case to arbitration suspends all judicial proceedings until the completion of arbitration, and trial courts lack any authority to institute proceedings which interfere with the completion of the arbitration process. (*Bucur v. Ahmad* (2016) 244 Cal.App.4th 175, 188.) In such cases, the arbitrator, not the court, must resolve all questions relating to the controversy. (*Ibid*; emphasis added.) (*See also SWAB Financial, LLC v. E*Trade Securities, LLC* (2007) 150 Cal.App.4th 1181, 1200 [stating in relevant part, that "[t]he trial court may not step into a case submitted to arbitration and tell the arbitrator what to do and when to do it; it may not resolve procedural questions, order discovery, determine the status of claims before the arbitrator or set the case for trial because of a party's alleged dilatory conduct. It is for the arbitrator, not the court, to resolve such questions."] Once a court grants a petition to compel arbitration and stays the litigation in the trial court, "the action at law sits in the twilight zone of abatement with the trial court retaining merely a vestigial jurisdiction over matters submitted to arbitration to determine, upon conclusion of the arbitration proceedings, whether an award on the merits requires dismissal of the legal action." (*Gaines v. Fidelity National Title Ins. Co.* (2016) 62 Cal.4th 1081, 1096.)

In sum, since this case has been submitted to arbitration, the entire case (including, but not limited to, any motions for sanctions, discovery disputes, issues regarding remote or in person appearances, and ultimately any determination of the merits of plaintiff's claims and defendant's defenses) must be litigated through the arbitration proceedings.

For the foregoing reasons, defendant's motion is DENIED in its entirety.